

IN THE CIRCUIT COURT OF DESOTO COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

PLAINTIFF

VERSUS

AMY LYNN CRAFT

DEFENDANT

CAUSE NUMBER CR-2021-897-GC (D)

SENTENCE

PRESIDING: Honorable Gerald W. Chatham, Sr.
Circuit Court Judge
17th Judicial District
State of Mississippi

APPEARANCES:

FOR THE STATE OF MISSISSIPPI:

Ms. Angie Huck
Assistant District Attorney
365 Loshier Street, Suite 210
Hernando, Mississippi 38632

FOR THE DEFENDANT:

Ms. Angela Boisseau
Attorney at law
4525 Derby Drive
Southaven, Mississippi 38671

DATE: Friday, September 16th, 2022

PLACE: DeSoto County Courthouse
Hernando, Mississippi

(IN OPEN COURT)

BY THE COURT: The Court would call Cause Number 2021-897, the State versus Amy Lynn Craft.

We are here today for a sentencing. Is the State ready?

BY MS. HUCK: Yes, sir, Your Honor.

BY THE COURT: Is the Defense ready?

BY MS. BOISSEAU: Yes, Your Honor.

BY THE COURT: I've been told that we have some witnesses; is that correct?

BY MS. HUCK: It is, Your Honor.

BY THE COURT: All right. And do you have witnesses also?

BY MS. BOISSEAU: Ms. Craft would like to make an allocution.

BY THE COURT: All right. You may call your first witness.

BY MS. HUCK: Thank you, Judge. The State would call the victim's father Chris Chamberlin to give a victim impact statement.

(THE WITNESS IS DULY SWORN BY THE COURT CLERK)

BY THE COURT: All right.

BY MS. HUCK: Thank you, Judge.

DIRECT EXAMINATION

BY MS. HUCK:

Q. Would you please state your name for the record?

1 A. My name is Christopher Chamberlin.

2 Q. And what is your relationship to Kohen
3 Chamberlin?

4 A. I'm the father.

5 Q. And he is the victim in this case,
6 correct?

7 A. That is correct.

8 Q. And who else is here today with you in
9 support of your son?

10 A. His grandmother and his mother.

11 Q. And did you prepare a statement that you
12 would like the Court to hear regarding victim
13 impact?

14 A. Yes, I have.

15 Q. Would you please read that to the Court?

16 A. All right.

17 "Our child was finally able to truly
18 start healing after the sentencing has been made
19 official. As was stated to me that in December of
20 2020 that changed our child's life forever, our
21 child expected a weekend of fun and relaxation with
22 fellow classmates, but that was not the case. Our
23 child never anticipated that his innocence would be
24 stripped away at the age of 12 and 13, as this was
25 only the beginning of the traumatic encounters that
26 took place over the following months.

27 As a parent, how can I even begin to
28 articulate what my child has been through and
29 continues to endure on a daily basis. The

1 perplexing thoughts that our child may have are
2 unimaginable to myself.

3 As our child continues to progress
4 towards a normal lifestyle, the thought of always
5 having to look over his shoulder is lurking through
6 his mind. Dealing with rumors and the surreptitious
7 conversations from peers is a continuous struggle
8 for our child.

9 An individual this young should never
10 have to experience the things that were bestowed
11 upon him. The carefree mentality of an adolescent
12 was ejected from our child due to the perversion of
13 an adult. How can our child ever trust a figure of
14 authority without rumination of the past.

15 Will our child be able to embrace a
16 relationship as adulthood is reached without having
17 reservations? Will our child be able to understand
18 that the circumstance was not of any fault of his
19 own, but rather that of a misguided individual.

20 I only want the best for our child, and
21 I hope that this day will bring some closure to the
22 psychological damage that was placed upon the
23 shoulders of my child.

24 Q. Mr. Chamberlin, is that not only a
25 victim impact statement on your behalf but also on
26 the rest of your family's behalf?

27 A. That is correct.

28 Q. And you've spoken with our office
29 several times; is that right?

1 A. That is also correct.

2 Q. And we have discussed the agreed
3 sentence that's before the Court, have we not?

4 A. That is correct.

5 Q. And although I'm sure that you would
6 like it to be worse than it is, you do understand
7 the recommendation and do you agree with the
8 recommendation?

9 A. That is also correct.

10 Q. And does your family as well?

11 A. That is also correct.

12 Q. Thank you, Mr. Chamberlin.

13 A. Thank you.

14 BY MS. BOISSEAU: I have no
15 questions, Your Honor.

16 BY THE COURT: You may stand down,
17 sir. Thank you.

18 BY THE WITNESS: Thank you, Your
19 Honor.

20 **(WITNESS EXCUSED)**

21 BY THE COURT: Anything else, Ms.
22 Huck?

23 BY MS. HUCK: No, Your Honor.

24 BY THE COURT: All right. Does your
25 client wish to make an allocution?

26 BY MS. BOISSEAU: Yes, Your Honor.

27 BY THE COURT: Bring her around
28 here.

29 BY MS. BOISSEAU: Your Honor, we'd

1 first like to acknowledge this side of the
2 courtroom are friends, family and church
3 members that are here to support Ms. Craft.

4 BY THE COURT: All right.

5 BY THE DEFENDANT: Thank you, Your
6 Honor for allowing me the opportunity to
7 speak to you today. Today I stand before you
8 brokenhearted over the pain and devastation
9 that I have caused. My poor judgment has
10 hurt so many people that never asked for any
11 of this nor do they deserve the pain I have
12 caused them.

13 First I would like to address the
14 victim and his family: I am so sorry. Words
15 will never ever be able to express the level
16 of remorse, regret, and sorrow I feel for
17 what I have put you through. I am so very
18 sorry for the hurt that my actions have
19 caused you.

20 I want you to know that I never had
21 any malicious intent in my heart. The last
22 thing I ever wanted was to hurt anyone, but
23 instead that's exactly what I've done. I
24 have hurt everyone.

25 What I did was wrong. I cannot
26 explain how we got here. I cannot explain
27 what happened in my head that allowed me to
28 make the mistakes that I made. I am
29 completely remorseful and full of sorrow over

1 my conduct and the pain it has caused so
2 many, the victim and his family as well as
3 their friends, my church family, my
4 coworkers, my friends, my extended family and
5 my immediate family, including my parents and
6 my brother, my husband and my two precious
7 sons, one of whom is autistic. I feel most
8 sorrow to the victim and his family because
9 they did not deserve what happened.

10 But next I am so very sorry to my
11 children who will suffer more pain and
12 punishment from my actions every day of their
13 lives than I will. Despite my conduct that
14 has brought us here today, I am a good mother
15 to my children. I have been their primary
16 caregiver since the day they were born, very
17 involved in every aspect of their lives, very
18 dedicated to my autistic son and intervention
19 needed for him to succeed. My children need
20 me and depend on me. Knowing that my conduct
21 will hurt them every day of their lives is
22 almost more than I can bear.

23 I am very sorry to my husband who
24 has chosen to stay with me through this
25 difficult time as well as through my recent
26 cancer diagnosis and treatment. I am very
27 sorry to my parents and my brother as well as
28 my extended family members. I am very sorry
29 to my church family of 20-plus years.

1 I am thankful to all these mentioned
2 for their love, support, encouragement,
3 forgiveness and daily prayers. I will never
4 forgive myself for the pain I've have caused
5 all of you.

6 Please know that I take full
7 responsibility and that I am completely
8 remorseful for my actions. I do find peace
9 knowing that I'm forgiven, but also know that
10 every action has consequences. I stand here
11 today taking full responsibility for what I
12 did and I know I must now accept my
13 punishment.

14 I have been in therapy since April
15 of 2021. Through therapy and the support
16 from my loved ones, I realize that somehow I
17 lost my way. I have always tried to be a
18 role model for my children, my family, and my
19 friends. I see my actions now for what they
20 are and I see what they have done to everyone
21 around me.

22 I know without a doubt that I will
23 never do anything like this again. I know
24 that I do not pose a threat in the future.
25 For everyone touched by my actions, again I'm
26 so sorry and I pray for peace and healing.

27 Once again to the victim and his
28 family, if I could go back and change things,
29 I assure you that I would. I wish beyond

1 words that I could take it all away. I never
2 wanted to cause you any pain, anger, or
3 confusion. I am so sorry for everything that
4 I did, every wrong decision that I have made.

5 I do ask for your forgiveness for my
6 actions. Please find it in your heart
7 one day to forgive me. I pray for healing
8 and peace from this for all of you.

9 Your Honor, I acknowledge that my
10 attorney and the State negotiated a plea and
11 a sentence that I accepted. I realize you
12 are not bound by that agreement, and I would
13 be grateful for your mercy and leniency to
14 sentence me to something less for the sake of
15 my children and for my ongoing medical
16 treatment. Thank you again, Your Honor, for
17 allowing me to speak today.

18 BY THE COURT: This is a part of my
19 job that I don't enjoy. There are parts that
20 I find very fulfilling, very gratifying, and
21 I feel like I am accomplishing something in
22 rendering a true service to the people that I
23 represent. Sometimes sentencings are
24 difficult for me because I'm a human being
25 and I too make mistakes like everybody else
26 and I don't -- you're going to pay society
27 for your mistake, but I understand you
28 profess to be a Christian, and that's an
29 important thing that in my view you

1 acknowledge your earthly mistake, but your
2 internal life will be with Jesus, and to me
3 that's the most important thing. If you had
4 to learn anything out of this experience, I
5 hope it's well worth it.

6 And, you know, just I see it every
7 day with what happens in the wake of crime,
8 what happens in the wake of mistakes like
9 this, as you eloquently pointed out, the hurt
10 that you caused this Chamberlin family -- and
11 you'll serve your time -- but the hurt that
12 they've suffered may last well beyond the
13 time that you spend in prison.

14 I hope that there will be a healing
15 in your family, sir, and I hope that you all
16 will come together and somehow try to put
17 this behind you and don't let hate control
18 your life. If someone harmed my family, I
19 understand that that's a tall order, but I
20 hope that you all will rise above that.

21 Is this sentence day for day?

22 BY MS. HUCK: Yes, sir, it is.

23 BY THE COURT: Very well. Ms.

24 Craft, having entered a plea of guilty to
25 Count 1 of the indictment of fondling and
26 Count 2 in the indictment of fondling in
27 violation of Section 97-5-23, it will be the
28 sentence of the Court in Count 1 that you
29 serve 12-and-one-half years incarcerated in

1 the Mississippi Department of Corrections and
2 12-and-one-half years and six months? I
3 don't understand that.

4 BY MS. BOISSEAU: I wrote out 12 and
5 six months. There wasn't enough room.

6 BY THE COURT: Oh, okay. My
7 mistake. So it's 12-and-one-half years.

8 BY MS. BOISSEAU: Yes, Your Honor.

9 BY THE COURT: In Count 1.
10 Thereafter, you'll be placed under a term of
11 15 years of post-release supervision to be
12 served in Count 2. That will be five years
13 of reporting and ten years of non-reporting.

14 Have you been over the terms of your
15 post-release supervision with your lawyer?

16 BY THE DEFENDANT: Yes, sir.

17 BY THE COURT: Do you understand
18 that if you violate one of those terms, I
19 would have the authority on proper showing to
20 revoke the balance of your sentence and
21 require you to serve the balance in the
22 Mississippi Department of Corrections?

23 BY THE DEFENDANT: Yes, sir.

24 BY THE COURT: Further, you'll pay
25 the fines, costs, and assessments that are
26 detailed in the sentencing order plus the
27 \$1,000 that's mandated to the Mississippi
28 Children's Trust Fund. That will all be paid
29 at the rate of \$100 per month, your first

1 payment will be due 60 days after your
2 release from incarceration.

3 Further, there's \$1,000 to pay to
4 the Victims of Human Trafficking and
5 Commercial Sexual Exploitation Fund.

6 This sentence will be served
7 consecutive to any sentence that you're
8 currently serving. You'll be given credit
9 for five days served in custody awaiting
10 hearing.

11 Anything further?

12 BY MS. HUCK: Your Honor, we should
13 have a no-contact order in place in the
14 order, and we can add that, Your Honor, no
15 contact with the victim or the victims'
16 family.

17 **(PAUSE IN PROCEEDINGS)**

18 BY THE COURT: I have entered a
19 no-contact order in your sentencing order,
20 and I want to explain that to you because
21 sometimes my past experiences tell me that
22 some people take this lightly or some people
23 don't obey it. No contact means no contact.
24 It means no phone calls, no social media
25 contact, no letters.

26 And I'll just give you a case in
27 point how serious I take this. I sentenced a
28 man one time, I issued a no-contact order,
29 and he pulled up behind his victim at a stop

1 light and got out of his car and stood beside
2 his car and started berating her, and I
3 revoked the balance of his sentence and made
4 him go back to jail. So I take that very
5 seriously and it's strictly enforced and I
6 just wanted you to understand that.

7 Anything further?

8 BY MS. HUCK: No, sir, Your Honor.

9 BY THE COURT: Anything from you,
10 Ms. Boisseau?

11 BY MS. BOISSEAU: No, sir, Your
12 Honor.

13 BY THE COURT: All right. That will
14 be the orders of the Court. I'll remand you
15 to the custody of the DeSoto County Sheriff's
16 Department.

17 BY MS. HUCK: Thank you, Your Honor.

18 **(PROCEEDINGS CONCLUDED)**
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CERTIFICATE

STATE OF MISSISSIPPI

COUNTY OF DESOTO

I, Katherine Hill Sanford, Certified Court Reporter for the State of Mississippi, hereby certify that the foregoing is a true and correct transcript of the proceedings taken by me in the above and foregoing numbered and captioned cause in Hernando, DeSoto County, Mississippi, on September 16th, 2022.

WITNESS MY SIGNATURE, this the 14th day of November, 2022.

/s/ Katherine Sanford
Katherine Sanford #1058
Certified Court Reporter